

Archival Source Packet

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Chapter 9.25 NOISE

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9.25.010 Policy and purpose.

It is hereby declared to be the policy of the city of Fremont in the exercise of its police power to protect the peace, health, safety and general welfare of the citizens of Fremont from excessive, unnecessary and unreasonable noises from any and all sources in the community. It is the intention of the city council to control the adverse effect of such noise sources on the citizens by prescribing standards prohibiting detrimental levels of noise and by providing a remedy for violations. The provisions of this chapter and the remedies contained in this code shall be cumulative and are not intended to replace any otherwise available remedies for public or private nuisances, nor any other civil or criminal remedies otherwise available. In addition, the regulations contained herein are not intended to substitute for any noise analysis conducted as a part of the city's environmental review process for discretionary permit approvals, nor is it intended to limit more strict noise control requirements for discretionary permit approvals should more strict measures be found to be necessary in order to maintain noise levels below adopted thresholds of significance.

Among the uncommon noise sources identified in the city's general plan are mobile sources such as airplanes, commuter and freight railroads, and highway traffic and other sources which are regulated exclusively by the federal or the state government. While in most instances the city may not intervene to address these problems directly, it is the policy of the city to work with responsible government agencies and elected officials to reduce the real and damaging effects of these noise-producing activities on the quality of life of the city's residents. (Ord. 04-2021 § 1, 4-20-21.)

9.25.020 General prohibition.

Notwithstanding any other provisions of this chapter and in addition thereto, it is unlawful for any person to willfully make or continue or cause to be made or continued any loud, unnecessary or unusual noise which disturbs the peace and quiet of any neighborhood or which causes discomfort or annoyance to any reasonable person of normal sensitiveness residing in the area.

The standards which shall be considered in determining whether a violation of the provisions of this section exists shall include, but not be limited to, the following:

- (a) The sound level of the objectionable noise;
- (b) The sound level of the ambient noise;
- (c) The proximity of the noise to residential sleeping facilities;
- (d) The nature and zoning of the area within which the noise emanates;
- (e) The density of the inhabitation of the area within which the noise emanates;
- (f) The time of day or night the noise occurs;
- (g) The duration of the noise and its tonal informational or musical content;
- (h) Whether the noise is continuous, recurrent or intermittent; and
- (i) Whether the noise is produced by a commercial or noncommercial activity. (Ord. 04-2021 § 1, 4-20-21.)

9.25.030 Prohibited acts.

It is the intent of this chapter to prohibit all disturbing, excessive and offensive noises except those permitted under another provision of this code or those exempt pursuant to Section 9.25.040 . Notwithstanding any other provisions of this chapter, the following acts, which are not in any way exclusive, are declared to be disturbing, excessive and offensive noises in violation of Section 9.25.020 :

- (a) Noises by Animals. The permitting, by any person having charge, care, custody, or control of any animal, of such animal to emit any noise which is disturbing, excessive or offensive. For the purposes of this subsection, the animal noise shall not be deemed a disturbance if the animal is emitting the noise in response to a person trespassing or threatening to trespass upon private property in or upon which the animal is situated or if the noise is for any other legitimate cause, such as someone teasing or provoking the animal.
- (b) Construction-Related Noise near Residential Uses. Construction work or related activity is limited to those times and circumstances set forth in Section 18.160.010 . As used in this chapter, “construction work” or “construction activity” shall mean any site preparation, assembly, erection, substantial repair, alteration, demolition or similar action, for or on any private property, public or private right-of-way, streets, structures, utilities, facilities, or other similar property. Construction activities carried on in violation of this chapter may be enforced as provided in Section 9.25.050 , and may also be enforced by issuance of a stop work order and/or revocation of any or all permits issued for such construction activity.
- (c) Conflicts with Residential Uses. Subject to the restrictions on construction contained in subsection (b) of this section, the sustained operation or use between the hours of 10:00 p.m. and 7:00 a.m. of any electric or gasoline powered motor or engine or the repair, modification, reconstruction, testing or operation of any automobile, motorcycle, sweeper, vacuum, public address system, whistle

muffler, motorized scooter, machine or mechanical device or other contrivance or facility unless such motor, engine, automobile, motorcycle, sweeper, vacuum, public address system, whistle muffler, motorized scooter, machine or mechanical device is enclosed within a sound insulated structure so as to prevent noise and sound from being plainly audible from any residential property line.

(d) Loud Music or Other Noise by People. The use of electronic equipment (including but not limited to amplifiers, radio loudspeakers, phonographs, tape amplifiers), electronically operated or acoustic musical instruments, other device of like design used for producing sound, or singing, chanting, or yelling in or upon any public street, park or grounds, or any other open area to which the public has access, whether publicly or privately owned, between the hours of 10:00 p.m. and 7:00 a.m. is unlawful. At any other time of day, such equipment or noise production may not be used in a manner which disturbs the peace, quiet and comfort of neighboring residents or persons of normal sensitivity who are using such areas.

(e) Music, Stereos and Electronics.

(1) Operating, playing or permitting the operation or playing of any radio, television set, audio equipment, drum, musical instrument, or similar device which produces or reproduces sound at any time of day in such a manner as to disturb the peace, quiet and comfort of neighboring residents or persons of normal sensitivity. The operation of any such instrument, audio equipment, television set, machine or similar device between the hours of 10:00 p.m. and 7:00 a.m. in such manner as to be plainly audible at a distance of 50 feet from the building, structure or vehicle in which it is located shall be prima facie evidence of a violation of this subsection.

(2) The conducting of or carrying on of band or orchestral concerts, rehearsals or practice between the hours of 10:00 p.m. and 7:00 a.m. sufficiently loud as to disturb the peace, quiet or repose of persons of ordinary and normal sensitivity who reside in the immediate vicinity of such band or orchestral concerts or rehearsals or practice.

(3) Using, or operating, or permitting to be used or operated, for any purpose, any loudspeaker, loudspeaker system, public address or similar device between the hours of 10:00 p.m. and 7:00 a.m. in such a manner as to disturb the peace, quiet and comfort of neighboring residents or persons of normal sensitivity, except for any noncommercial public speaking, public assembly or other activity for which a permit has been issued pursuant to Chapter 12.25 . (Ord. 04-2021 § 1, 4-20-21.)

9.25.040 Exemptions.

The following activities shall be exempt from the provisions of this title:

(a) Emergency Work. The provisions of this title shall not apply to the emission of sound for the purpose of alerting persons to the existence of an emergency or in the performance of emergency work, and activities involving the execution of the duties of duly authorized governmental personnel and others providing emergency response to the general public, including but not limited to sworn peace officers, emergency personnel, utility personnel, and the operation of emergency response vehicles and equipment.

(b) Entertainment Events and Operations. The provisions of this chapter shall not apply to those reasonable sounds emanating from authorized school bands, school athletic and school entertainment events and occasional public and private outdoor or indoor gatherings, public dances, shows, bands, sporting and entertainment events conducted between the hours of 7:00 a.m. and 10:00 p.m., and special events for which a permit has been issued pursuant to Chapter 12.25 . In addition, noise associated with activities that are part of urban core operations as defined in Section 18.188.020 or with places of entertainment that are in compliance with Section 5.45.130 .

(c) Federal or State Preempted Activities. The provisions of this chapter shall not apply to any other activity the noise level of which is regulated by state or federal law.

(d) Maintenance to Residential Property. The provisions of this chapter shall not apply to noise sources associated with maintenance to property used for residential purposes, provided the activities take place between the hours of 7:00 a.m. and 10:00 p.m.

(e) Garbage Removal. The provisions of this chapter shall not apply to garbage removal services in commercial and mixed-use districts, even if the garbage services are located adjacent to residential districts.

(f) Industrial Districts. The provisions of this chapter shall not apply to industrial districts I-S, I-T, and G-I zones.

(g) Public Health, Welfare and Safety Activities. The provisions of this chapter shall not apply to construction, maintenance and repair operations conducted by public agencies, franchisees of the city and/or utility companies or their contractors which are deemed necessary to serve the best interests of the public and to protect the public health, welfare and safety, including but not limited to trash collection, street sweeping, tree removal, debris and limb removal, removal of downed wires, restoring electrical service, repairing traffic signals, unplugging sewers, vacuuming catch basins, repairing of damaged poles, removal of abandoned vehicles, repairing of water hydrants and mains, gas lines, oil lines, sewers, storm drains, roads, sidewalks, etc. (Ord. 04-2021 § 1, 4-20-21.)

9.25.050 Enforcement.

Any violations of the provisions of this chapter are expressly deemed and declared to be a public nuisance, and such violation shall be abated in the manner provided in Chapter 8.60 . (Ord. 04-2021 § 1, 4-20-21.)

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